

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**DECLARATION OF
FRANCISCUS DYLAN ROSARIO**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7 as applicable to the relief opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court's authority to consider the substance is under Code of Civil Procedure sections 391
2 through 391.7 and California Rules of Court, rules 3.1110 and 3.1113.

3 5. This paper is timely filed for the August 26, 2026 hearing under Code of Civil Procedure
4 section 1005, subdivision (b), and California Rules of Court, rule 3.1300.

5 Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

6 I, Franciscus Dylan Rosario, declare:

7 1. I am the Plaintiff in this action, CGC-25-631802. I am self-represented. I have personal
8 knowledge of the facts stated in this declaration, except where stated on information and
9 belief, and if called as a witness I could and would testify competently to them.

10 2. I make this declaration in support of my opposition to Defendant CSAA Insurance Ex-
11 change's motion, served July 21, 2026, to declare me a vexatious litigant and to require
12 security, noticed for hearing on August 26, 2026, at 9:00 a.m. in Department 302.

13 **PROCEDURAL CHRONOLOGY (MECHANICAL ADMISSIONS)**

14 3. I was the plaintiff in *Rosario v. Abdelhalim*, San Francisco Superior Court Case No. CGC-21-
15 594102. A defense verdict and judgment were entered in that action. I filed a notice of appeal.
16 The appeal is pending in the Court of Appeal, First Appellate District, Case No. A173827.

17 4. While that appeal remained pending, I filed San Francisco Superior Court Case No. CGC-25-
18 631801 (naming the insured, the carrier, and defense counsel) and this action, Case No. CGC-
19 25-631802 (naming CSAA Insurance Exchange).

20 5. On or about May 12, 2026, the Court granted an anti-SLAPP motion in Case No. CGC-25-
21 631801 as to certain defendants. On information and belief based on Defendant's moving
22 papers, a fees motion in that case remains pending.

23 6. On July 1, 2026, the Court filed an Order Granting Defendant's Special Motion to Strike
24 First Amended Complaint and Denying Other Relief in this Case No. CGC-25-631802. On
25 information and belief based on the Declaration of Tyler J. O'Connell, Defendant's motion
26 for attorney's fees in this case remains pending.

PRIMARY-RIGHT SEPARATION

7. The primary right I pursued in the personal-injury action was the right to be free from negligent operation of a motor vehicle by the insured driver.
8. The primary rights I have pursued and continue to preserve against CSAA concern CSAA's claims handling, including whether CSAA obtained foundational objective evidence (including 911 audio, body-worn camera footage, and CAD records) before certifying an investigation as "concluded," and whether CSAA concealed the emptiness of that investigation file. Those rights are separate from the negligence primary right adjudicated against the driver.
9. References in my pleadings to 911, body-worn camera, and CAD materials are offered as evidence bearing on whether CSAA obtained those materials before its investigation certification and denial, not as a request that this Court re-try the personal-injury liability verdict.

DEFENSE MULTI-MOTION STACK VERSUS LEAVE / SAC (VERIFIED COUNT)

10. On April 16, 2026, I filed a Motion for Leave to File Second Amended Complaint in this Case No. CGC-25-631802 (clerk docket / ROA entry corresponding to Transaction ID associated with that leave motion; see Plaintiff's Exhibit Index ISO Opposition, cross-reference to RFJN Ex. B register of actions).
11. Before and around that leave request, Defendant filed **three** noticed motions attacking the First Amended Complaint and forcing multi-track briefing:
 - a. Special Motion to Strike under Code of Civil Procedure section 425.16 (anti-SLAPP), filed April 9, 2026;
 - b. Demurrer to the First Amended Complaint, filed April 13, 2026;
 - c. Motion to Strike under Code of Civil Procedure section 436, filed April 22, 2026.
12. On April 23, 2026, Defendant filed an Opposition to my Motion for Leave to File Second Amended Complaint. On information and belief based on the clerk register of actions and the July 1, 2026 order calendar (Defendant's RFJN Ex. E), those three Defendant-noticed motions, together with Defendant's opposition to leave, are the defense stack that multiplied

responsive briefing around a single leave / SAC path.

13. On April 28, 2026, I also filed a Motion for Leave to File Third Amended Complaint. On May 12, 2026, Defendant filed an Opposition to that motion. My subsequent oppositions, supplements, bench briefs, and notices of authority in this case were, in substantial part, **responses** to Defendant's anti-SLAPP, demurrer, section 436 strike, and leave oppositions, not freestanding filings initiated to harass counsel or the Court.

14. I dispute any characterization that the resulting docket volume was "solely intended to cause unnecessary delay." But for Defendant's three-motion stack against the FAC / leave path, the bulk of my responsive filings would not have been necessary.

JULY 6, 2026 NOTICE LETTER

15. On July 6, 2026, I sent a letter by email to Tyler J. O'Connell, Chad S. Tapp, and other Porter Scott personnel regarding the July 1, 2026 order. The letter stated my position on the limited scope of that order, the primary-right doctrine under *Crowley* and *Mycogen*, and my retained right to pursue unadjudicated institutional-omission theories. A copy of that letter appears in Defendant's Declaration of Tyler J. O'Connell, Exhibit 1 (defense Bates numbering beginning approximately 0029 in the extracted exhibit set). See also Plaintiff's Exhibit Index, Exhibit A.

16. Defendant's July 21, 2026 vexatious-litigant motion was filed after that July 6 notice. The motion treats my pursuit of those unadjudicated primary rights as relitigation and forum shopping.

DISCOVERY, CORRESPONDENCE, AND AI-TOOL ALLEGATIONS

17. Discovery I have served in this action has been directed to claims-file contents, investigation steps, and whether foundational objective evidence was obtained before CSAA's February 2021 investigation certification and denial. That discovery is directed to empty-file and claims-handling issues, not to re-litigating the jury's negligence findings against the driver. Sample discovery covers are identified in Plaintiff's Exhibit Index, Exhibit C.

18. Email correspondence with defense counsel has included meet-and-confer communications,

1 electronic service of papers, scheduling, responses to Defendant's demands and threats (in-
2 cluding sanctions and vexatious-litigant themes), and notices concerning controlling author-
3 ity. Sample service / meet-and-confer emails are identified in Plaintiff's Exhibit Index, Ex-
4 hibit B. I do not dispute that the volume of email is high. Volume alone does not describe
5 purpose. Electronic service of papers (serve) is not the same as e-filing every served draft on
6 the Court docket (file).

7 19. Defense papers allege that filings were "prepared with artificial intelligence large language
8 models" and were therefore "A.I.-drafted, frivolous." I use drafting tools, including computer-
9 assisted drafting aids, as a self-represented litigant. Tool use is not an admission of frivolous-
10 ness, lack of personal knowledge, or intent to harass. I review, adopt, and take responsibility
11 for papers I sign and file. I deny that use of drafting tools converts claims-handling advocacy
12 into section 391(b)(3) abuse.

13 20. I have filed notices of authority, including notices addressing *JKC3H8, Inc. v. Colton* and
14 related commercial-speech / anti-SLAPP gateway principles under Code of Civil Procedure
15 section 425.17(c), to discharge candor obligations regarding controlling or directly adverse
16 authority. Those notices were not filed to harass counsel or to delay for delay's sake.

17 **CONTRA COSTA VENUE**

18 21. On information and belief, CSAA Insurance Exchange maintains its principal place of busi-
19 ness and conducts claim administration in Contra Costa County. Any discussion of filing
20 related claims in Contra Costa County has been based on that venue connection to the carrier
21 and claim administration, not on an intent to evade a particular judicial officer.

22 **WONG RT 11 EVIDENCE-OF-LAW INSTRUCTION AND LODGING** 23 **PRACTICE**

24 22. In the personal-injury trial in CGC-21-594102, the jury submitted a question concerning Ve-
25 hicle Code sections 22107 and 21804(a). The court responded in writing and orally. As
26 reflected in Wong Reporter's Transcript volume 11, pages 7-8 (Transaction IDs 79843794 /
27 79830359 / 79843899), the court instructed that those sections were not part of the evidence

1 and that the jury was “not permitted to consider that as evidence in the case, period.” I lodge
2 that excerpt as Plaintiff’s Exhibit D in support of this opposition.

3 23. I cite that instruction here only as evidence-practice and incomplete-adjudication context for
4 opposing Defendant’s section 391 motion. I do not ask Department 302 to reverse the Wong
5 ruling or to decide the merits of appeal A173827. The practical lesson I drew is that if a
6 proposition is not entered as evidence the tribunal may consider, it should not be treated as
7 evidence, period. For that reason, I lodge statutes, controlling authority, requests for judicial
8 notice, and notices of adverse authority (including *JKC3H8* and Code of Civil Procedure
9 section 425.17(c) principles) so the Court has a complete record of the law and issues I ask it
10 to consider. I deny that such lodging is “frivolous,” “harassing,” or “solely intended to cause
11 unnecessary delay” under section 391(b)(3).

12 **COURTESY AFFIRMATION**

13 24. Defense papers describe discourteous language and name-play in certain emails. I do not
14 repeat or defend those statements here. I affirm that going forward I will communicate with
15 opposing counsel courteously and will confine correspondence to the legal and factual issues
16 in dispute.

17 25. Except as expressly stated, I do not by this declaration admit any characterization in Defen-
18 dant’s papers that my filings or discovery were “frivolous,” “harassing,” or “solely intended
19 to cause unnecessary delay.”

20 I declare under penalty of perjury under the laws of the State of California that the foregoing is
21 true and correct.

22 Executed on July 21, 2026 at Rohnert Park, California.

23 _____
24 FRANCISCUS DYLAN ROSARIO Declarant



VALIDATION VERIFICATION

(CRC 2.100 through 2.111; CRC 2.256(b); CRC 2.257; CCP § 1010.6 / CRC 1.21)

I, the undersigned Plaintiff in propria persona, verify under penalty of perjury under the laws of the State of California that:

1. This paper complies with California Rules of Court, rules 2.100 through 2.111 (format), rule 2.256(b) (text-searchable PDF), and rule 2.257 (signature).
2. Electronic service of this paper is made in the context of Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21.
3. Cohort-wide OCR, bookmark, and SHA-256 attestations for the July 21 / August 2026 vexatious-litigant opposition packet are set out in the concurrently filed Declaration of Compliance (CRC 2.256 / 3.1110), which is not duplicated here.

Dated: July 22, 2026



Plaintiff in propria persona